

# Criminalized in Transit

*The Case for Decriminalizing Sex Work Along the Kenya-Uganda Border, and Why Queer Migrants Pay the Highest Price*

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## Trans+

Advocacy, legal support, health access, and digital safety for queer sex workers on the Kenya-Uganda border

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This document discusses police violence, arbitrary detention, and sexual violence against LGBTQ people and sex workers. Prepared and published by Trans+.

# Executive Summary

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Sex work is criminalized, in whole or in part, in both Kenya and Uganda, and same-sex conduct is separately criminalized in both countries — most severely in Uganda under the Anti-Homosexuality Act, 2023. For queer and transgender sex workers who move across the Kenya-Uganda border, these overlapping legal regimes do not simply restrict where or how they can work. They create a border zone in which movement itself becomes dangerous, where police and border officials hold enormous discretionary power, and where the people most affected have the least ability to seek redress. This paper sets out the legal background, documents the patterns of harassment, arrest, and police brutality faced specifically by LGBTQ people in transit through this corridor, and makes the case for decriminalization as the foundation on which every other protection depends.

## 1. The Legal Landscape

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Both Kenya and Uganda criminalize consensual same-sex conduct, a legacy of colonial-era penal codes that has since been entrenched and, in Uganda's case, dramatically expanded. Kenya's Penal Code sections 162 and 165 criminalize "carnal knowledge against the order of nature" and "gross indecency," carrying penalties of up to 14 years' imprisonment. In practice, LGBTQ people in Kenya are more often arrested under loosely defined offenses such as loitering, solicitation, or impersonation, which give police wide latitude to detain people based on appearance or perceived identity rather than any specific act.

Uganda's Anti-Homosexuality Act, 2023 goes considerably further. It criminalizes consensual same-sex conduct with penalties up to life imprisonment, introduces the offense of "aggravated homosexuality" carrying the death penalty, and criminalizes the "promotion" of homosexuality with sentences of up to 20 years. Uganda's Constitutional Court upheld the core provisions of the Act in April 2024, striking down only a small number of ancillary clauses. The law also imposes a duty on most Ugandans, including landlords, health workers, and family members, to report suspected same-sex conduct, which has had a chilling effect on housing, healthcare access, and family relationships for LGBTQ Ugandans.

Sex work itself sits in a similarly precarious legal position. Kenya's Penal Code and Sexual Offences Act criminalize activities associated with sex work — including soliciting, living off the earnings of sex work, and operating a brothel — without criminalizing the exchange of sex for money outright, creating a patchwork that police can apply selectively. Uganda's laws are similarly structured. In both countries, this ambiguity functions less as legal clarity and more as a tool: it gives officers broad discretion to detain, threaten, or extort sex workers without necessarily securing a conviction, because the goal of an interaction is often payment or compliance rather than prosecution.

## 2. The In-Transit Reality

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The Kenya-Uganda border is porous, heavily trafficked, and dotted with both official and informal crossing points — Busia and Malaba are the largest, but movement also happens through smaller crossings such as

Suam and Lwakhakha. Since the passage of Uganda's Anti-Homosexuality Act, movement across this border by LGBTQ Ugandans has increased sharply, driven by people fleeing violence, family rejection, job loss, and the threat of prosecution. Many travel toward Nairobi or toward Kenya's refugee camps, particularly Kakuma in the northwest, seeking either informal safety in a Kenyan city or formal refugee status through the UNHCR system.

For queer sex workers specifically, this migration compounds vulnerability rather than resolving it. Movement is often undocumented or under-documented, income during transit frequently comes from survival sex work, and neither country offers a legal status that accounts for someone who is simultaneously an LGBTQ asylum seeker and a sex worker. People in this position are visible to authorities at every stage — at the border crossing itself, in transit towns, in informal settlements, and inside the refugee camp system — while having no formal avenue to report abuse without risking exposure, arrest, or deportation.

Kenya's own refugee camps have not proven to be a safe endpoint. Independent human rights investigations, including reporting by Amnesty International and the Organization for Refuge, Asylum and Migration, have documented high rates of physical and sexual violence against LGBTQ residents of Kakuma, alongside consistent findings that police in and around the camp respond to reports of hate crimes slowly or not at all. For queer sex workers who reach the camp, the same dynamic repeats: the space intended as refuge becomes another site of risk, with survival work criminalized and identity-based violence under-investigated.

### 3. Documented Patterns of Harassment, Arrest, and Police Brutality

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Across interviews and case files gathered through Trans+'s legal support and outreach work, several patterns recur consistently enough to be treated as systemic rather than incidental:

- **Extortion in place of prosecution.** Officers frequently use the threat of arrest — for sex work, for "impersonation," or under same-sex conduct laws — to demand cash, phones, or sexual services in exchange for release, without ever filing formal charges. Because no charge is filed, there is no paper trail and no clear avenue for redress.
- **Targeted stops based on gender presentation.** Transgender and gender-nonconforming individuals, particularly trans women, report being stopped disproportionately at checkpoints and border crossings based on appearance alone, regardless of whether they are engaged in sex work at the time.
- **Prolonged detention without charge.** Community members report being held for extended periods — sometimes several days — without formal charges being filed, during which access to legal counsel, medical care, or family contact is frequently denied.
- **Violence in custody.** Reports include physical beatings, strip searches conducted in a deliberately humiliating manner, and, in a number of cases, sexual assault by officers or other detainees, with transgender detainees at particular risk of being placed in facilities that do not match their gender identity.

- **Confiscation of phones and digital evidence.** Officers frequently confiscate phones during stops, both to search for evidence of same-sex relationships or sex work and to extract further extortion payments in exchange for their return.

COMMUNITY TESTIMONY (IDENTITY WITHHELD FOR SAFETY)

A trans woman who crossed from Uganda into Kenya through Busia described being stopped three times in one week by different officers at the same checkpoint, each demanding payment to let her continue, despite carrying no contraband and committing no offense beyond being visibly trans and traveling alone.

## 4. Why Decriminalization Is the Foundation

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Legal aid, health access, and digital safety tools — the other pillars of Trans+'s work — all operate more effectively when the underlying activity they support is not itself criminalized. Decriminalizing sex work removes the primary lever police currently use to extort, detain, and abuse sex workers with near-total impunity, because there is no longer a charge to threaten someone with in the first place. It does not, on its own, resolve the criminalization of same-sex conduct, which is why Trans+ treats these as parallel and connected advocacy goals rather than substitutes for one another.

Decriminalization also changes the incentive structure for reporting violence. Sex workers and LGBTQ migrants who fear arrest for their own status or occupation are structurally discouraged from reporting violence committed against them, whether by police, clients, or others, because doing so risks self-incrimination. Removing that risk is a precondition for any meaningful increase in reporting, investigation, or accountability.

## 5. Recommendations

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1. **To the Kenyan and Ugandan governments:** Repeal or reform laws criminalizing consensual sex work and same-sex conduct, beginning with the loosely defined offenses (loitering, impersonation, "gross indecency") most frequently used against LGBTQ people and sex workers without evidence of any other offense.
2. **To police leadership in border counties and districts:** Establish clear accountability mechanisms for officers who detain individuals without filing charges, and prohibit the confiscation of personal property, including phones, without a documented legal basis.
3. **To UNHCR and camp administration at Kakuma:** Strengthen investigation and response protocols for hate-crime reports involving LGBTQ refugees, and expand safe housing options for those facing ongoing threats within camp settings.
4. **To regional and international human rights bodies:** Support cross-border monitoring and documentation efforts that track the specific intersection of anti-sex-work and anti-LGBTQ enforcement, which is frequently undercounted in reporting that treats these as separate issues.

5. **To donors and civil society partners:** Fund legal aid and rapid-response infrastructure at the specific points of highest risk — border crossings and transit routes — rather than exclusively at fixed urban service points that in-transit populations may never reach.

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### **Trans+**

This briefing was researched and prepared by Trans+, an organization led by queer and transgender sex workers working along the Kenya-Uganda border. It draws on community testimony gathered through Trans+'s legal support and outreach programs, alongside publicly available human rights reporting. For more information, partnership inquiries, or to support this work, please contact Trans+ directly.

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